

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1068

By: Gann

AS INTRODUCED

An Act relating to public finance; prohibiting state or local government entities from entering into certain agreements; providing certain propriety information not subject to disclosure; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 10001 of Title 62, unless there is created a duplication in numbering, reads as follows:

A. Except as provided by subsection B of this section, no state governmental entity or public trust having the state as its beneficiary may enter into any agreement with a person, partnership, limited partnership, limited liability partnership, corporation, limited liability company, trust or other legal entity that would prohibit the state governmental entity from making disclosure of the terms of any agreement with such entity to make payment to or confer value upon the entity using an incentive, tax credit, direct or

1 indirect payment, grant, or similar benefit offered to such entity
2 if the benefit is provided through the use of state taxes.

3 B. The provisions of subsection A of this section shall not
4 require a state governmental entity or a public trust having the
5 state as its beneficiary to disclose information of a proprietary
6 nature with respect to a for-profit business entity if such
7 information has been provided to the state governmental entity or
8 public trust by or on behalf of the for-profit business entity, such
9 as trade secrets, the cost of inputs used or consumed by the
10 business entity, the labor costs of the for-profit business entity,
11 or information related to profit margins on goods or services sold
12 by the for-profit business entity.

13 SECTION 2. This act shall become effective November 1, 2025.

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